

**ORIX****ORIX LEASING & FINANCIAL SERVICES INDIA LIMITED**

Vendor Name : Sai Baba Autowheels Pvt Ltd (Dealer/Seller)
Kind Attention : Taushif Mokashi
Address : 5/4, Nakhate Nagar, Kalewadi Main Road, Thergaon, Pune, Maharashtra, 411033
Pune - 41033
Mh
GSTIN No. : 27AAUCS2766A1Z3
State Code : 27

Purchase Order

Dated As : 21-MAY-2024
Purchase Order : DMFL02000089330

Bill To : ORIX LEASING & FINANCIAL SERVICES INDIA LIMITED (Buyer/Lessor)
Orix Leasing And Financial Services India Ltd, Plot No 94, Marol Co Op Industrial Estate, Andheri Kurla Road, Mumbai,
PAN : AABCI9186R
GSTIN : 27AABCI9186R1ZL
State Code : 27
Company Phone :
Website : www.orixindia.com
Email : info@orixindia.com

Name & Address for Registration under Motor Vehicle Act & Rules (Delivery Location):

Vishal Kumar (735402)
C 607 Pristine Prolife Phase 3 Wakad Pune Maharashtra - 411057 ,Pune,Maharashtra,411057

Registration Type : Individual

Name of User : Vishal Kumar (735402)
Tentative Delivery Date : 31-JUL-2024

Sr.No	Description of Goods	HSN Code (GST)	Total (Rs)
	Vehicle Model: TATA/PUNCH/ADVENTURE RHYTHM AMT//PETROL/AUTOMATIC/5 Color : Tropical Mist/ALL/	87032299	
	Base Price		Rs. 612,289.92
	SGST @14% on Base price		Rs. 85,720.59
	CGST @14% on Base price		Rs. 85,720.59
	IGST @0% on Base price		Rs. 0.00
	Compensation Cess @1% on Base price		Rs. 6,122.90
A	Ex-Showroom Price / Invoice Amount		Rs. 789,854.00
B	TCS		Rs. 0.00
C	Registration Charges		Rs. 92,146.00
	SGST @ __% on Registration (If applicable)		Rs. 0.00
	CGST @ __% on Registration (If applicable)		Rs. 0.00

	IGST @ __% on Registration (If applicable)		Rs.	0.00
D	Insurance		Rs.	0.00
	Accessories 1		Rs.	0.00
	SGST @0% on Accessories 1 (If applicable)		Rs.	0.00
	CGST @0% on Accessories 1 (If applicable)		Rs.	0.00
	IGST @0% on Accessories 1 (If applicable)		Rs.	0.00
E	Total Accessories		Rs.	0.00
F	Extended Warranty		Rs.	0.00
G	Total Cost = (A+B+C+D+E+F)		Rs.	882,000.00
H	(LESS) Amount Paid by lessee/Co lessee to Dealer		Rs.	0.00
I	Amount Financed/Payable by Orix = (G-H)	TOTAL	Rs.	882,000.00

Additional Notes:

Instruction for Delivery: Take instruction from User.

1. Acceptance

This Purchase Order (Order) is an offer by the company identified on the face of this Purchase Order (the "Buyer/Lessor") for the purchase of the goods (the "Goods") specified, from the Vendor to whom the Order is addressed (the "Seller") in accordance with and subject to these terms and conditions specified herein. This Order will be deemed to be accepted by the Seller upon the first of the following to occur: (a) Seller making, signing, or delivering to Buyer any letter, form, or other writing or instrument acknowledging acceptance; (b) any performance by Seller under the Order; or (c) the passage of minimum three (3) days after Seller's receipt of the Order without written notice to Buyer that Seller does not accept. This Order, together with any documents incorporated herein by reference, constitutes the sole and entire agreement of the parties with respect to the Order and supersedes all prior or similar understandings, agreements, negotiations, representations and warranties, and communications, both written and oral, with respect to the subject matter of the Order, unless a separate overriding written contract has been entered into and signed by the parties. The Order expressly limits Seller's acceptance to the terms of the Order. These Terms expressly exclude any of Seller's terms and conditions of sale or any other document issued by Seller in connection with this Order.

2. Delivery

Seller shall deliver the Goods at the delivery point (the "Deliver Location"), and on the date(s) specified in this Order (the "Delivery Date"). If no delivery date is specified, Seller shall deliver in full within a reasonable time of receipt of the Order. Timely delivery of Goods is of an essence of this Order. If Seller fails to deliver the Goods in full, on the Delivery Date, for any reason whatsoever, the Buyer shall have right to terminate or cancel the Order immediately and Seller shall indemnify Buyer against any losses, damages, and reasonable costs and expenses attributable to Seller's failure to deliver.

3. Inspection

Buyer or its representative reserves the right to inspect the Goods on or after the Delivery Date. Buyer, at its sole option, may reject all or any portion of the Goods if it determines the Goods are defective or nonconforming. If Buyer requires replacement of the Goods, pursuant to Clause 7, Seller shall promptly replace the nonconforming Goods. If Seller fails to timely deliver replacement Goods, Seller shall refund the advance amount, if any, paid by the Buyer to the Seller with interest @ 18% p.a. and the Buyer shall terminate this Order for cause pursuant to Clause 6. Any inspection or other action by Buyer under this Section shall not affect Seller's obligations under the Order, and Buyer shall have the right to further inspection after Seller takes remedial action.

4. Cumulative Remedies

The rights and remedies under this Order are cumulative and are in addition to any other rights and remedies available at law or in equity or otherwise. If Seller is in breach of the warranties set out in Clause 7, Seller will, at its sole cost, replace or repair the Goods or re-perform Services to Buyer's satisfaction.

5. Price and Payment

The price of the Goods is the price stated on the face of this Order (the "Price"). Seller shall invoice Buyer for the Order within (7) days of the delivery of Goods / Services. The Seller shall ensure that price and description of Goods specified in the invoice shall be as specified in the Order. Unless otherwise stated in the Order and subject to Clause 12, Buyer shall pay all properly invoiced amounts due to Seller not later than sixty (60) days after receipt of such invoice, except for any amounts disputed by Buyer. The parties shall seek to resolve all such disputes expeditiously and in good faith. Seller shall continue performing its obligations under the Order notwithstanding any such dispute. Without prejudice to any other right or remedy, Buyer reserves the right to set off any amount owing to it by Seller against any amount payable by Buyer to Seller. Payment of an invoice is not evidence or admission that the Goods meet the requirements of the Order.

6. Termination

Buyer may terminate this Order, in whole or in part, for any reason upon thirty (30) days' prior written notice to Seller. In addition to any remedies provided herein, Buyer may terminate this Order with immediate effect, either before or after acceptance of Goods, if Seller has breached any of the Terms herein. If the Seller becomes insolvent, commences or has commenced by it or against it bankruptcy proceedings, receivership, reorganization or assignment for the benefit of creditors, then the Buyer may terminate this Order. If Buyer terminates the Order for any reason, Seller's sole and exclusive remedy is payment for the Goods received and accepted by Buyer prior to the termination. Notwithstanding the termination of the Order for reason as stated above, the Buyer may cancel the Order for reason to be provided in writing and without any cost not later than 7 (Seven) working day from the date of issuance of the Order. In such case the Seller agrees to refund to the Buyer all sums of money that the Buyer may have paid to the Seller alongwith issuance of the Order.

7. Warranties

Seller warrants to Buyer that Goods deliver to the Buyer will: (a) be free from any defects in workmanship, material and design; (b) conform to applicable specifications; (c) be fit for their intended purpose and operate as intended; (d) be free and clear of all liens, security interests or other encumbrances. These warranties survive any delivery, inspection, acceptance or payment. These warranties are cumulative and in addition to any other warranty provided by the manufacturer of Goods or provided under law or equity. Any applicable statute of limitations runs from the date of Buyer's discovery of the noncompliance. If Buyer gives Seller notice of noncompliance, Seller shall, at its own cost and expense, promptly replace or repair the nonconforming Goods.

8. Confidential Information

All non-public, confidential or proprietary information of the Buyer, including, but not limited to, documents, Personal identifiable Information of its customers, business operations, pricing, discounts or rebates, disclosed by Buyer to Seller, whether disclosed orally or disclosed or accessed in written, electronic, or other form or media, and whether or not marked, designated or otherwise identified as "confidential," in connection with the Order is confidential, solely for the use of performing the Order and may not be disclosed or copied unless authorized by Buyer in writing. Upon Buyer's request, Seller shall promptly return all documents and other materials received from Buyer. Buyer shall be entitled to injunctive relief for any violation of this Section.

9. Shipping Terms

Delivery shall be made in accordance with the Terms of this Order. The Supplier shall be responsible for obtaining transit insurance covering risk of damage, theft, loss or any such condition from place of delivery until Goods reaches to Delivery Location. The Order number must appear on all documents pertaining to the Order, invoices, packing lists, correspondence, and all shipping documents. Seller shall not substitute good / material or ship more than the quantity ordered. Supplier shall provide documents such as (i) Original Tax Invoice; (ii) Original Debit Note (If applicable); (iii) Transit insurance cover copy prior to delivery of Goods. Supplier shall submit following documents to the Buyer within 3 days of delivery (i) RTO Tax Receipt copy; (ii) Accessories Invoice (if any); (iii) Copy of delivery note signed by the Lessee or its nominee; (iv) Statement of account of Goods purchased vide this Order; (v) Copy of transit insurance of Goods; (vi) No due confirmation; (vii) RC Book Smart Card Payment Receipt.

10. Representations and Warranties: Seller represents, warrants and undertakes to comply with the following:

(a) it shall raise a valid, correct and complete tax invoice / credit note / debit note/ supplementary invoice/ receipt voucher/ other related documents (collectively referred to as 'Payment Document') as prescribed under the applicable relevant taxation laws. Buyer shall not be obliged to pay GST charged by the Seller in its invoice or such other documents until such time it appears in GSTR-2A of the Buyer. The Buyer shall be absolved from its obligation to pay GST charged by the Seller in an invoice, if GST charged on such invoice does not appear as input credit in GSTR-2A of the Buyer, on or before 31st August following the end of the financial year to which such invoice or Payment Document, as the case maybe, pertains to.

(b) it shall raise a valid, correct and complete tax invoice / credit note / debit note/ supplementary invoice/ E-Invoice receipt voucher/ other related documents (collectively referred to as 'Payment Document') as prescribed under the applicable relevant taxation laws. Buyer shall not be obliged to pay TCS charged by the Seller in its invoice or such other documents until such time it appears in Form 26 AS of the Buyer. The Buyer shall be absolved from its obligation to pay TCS charged by the Seller in an invoice, if TCS charged on such invoice does not appear as tax credit in Form 26 AS of the Buyer.

(c) Seller shall issue E-invoice if applicable as per provisions of GST. If Seller does not issue E-invoice and due to which Buyer lose any claim of input tax credit, then seller shall indemnify such loss of input tax credit along with interest and penalty to buyer. Seller shall also file GSTR 1 and GSTR 3B or any such other returns as he is required to file as per provisions of GST law basis on which buyer can claim GST input tax credit. If any loss occurred to Buyer due to default of Seller in filing any of the returns, then Seller shall indemnify such losses to Buyer along with interest and penalty. Buyer reserves the right to recover/withhold an amount equivalent to the loss suffered by Buyer due to default of Seller as stipulated in this clause along with any interest and penalty from any other ongoing contract/order or future order of the Seller. Buyer shall not be obliged to pay GST charged by the Seller in its invoice or such other documents until such time it appears in GSTR-2A/2B of the Buyer. The Buyer shall be absolved from its obligation to pay GST charged by the Seller in an invoice, if GST charged on such invoice does not appear as input credit in GSTR-2A/2B of the Buyer, on or before 31st August following the end of the financial year to which such invoice or Payment Document, as the case maybe, pertains to.

(d) Seller shall comply with all the provisions and compliance requirements under applicable relevant taxation laws, including without limitation, timely registration (including any amendments/additions/deletions thereto), filing of all necessary information and returns/ forms, furnishing of all Payment Documents, payment of applicable taxes, etc. The Seller shall maintain its GST compliance rating score as and when notified by relevant taxation authority and that the Seller shall ensure that such rating does not fall below parameters/ benchmarks as prescribed by such relevant taxation authority, from time to time.

(e) The Seller represents that they are / are not a Micro/Small enterprise or a 'supplier' within the meaning prescribed under the Micro Small and Medium Enterprises Development Act, 2006 ("MSMED Act"). If Seller is Micro / Small Enterprise in terms of the MSMED Act they shall periodically submit such documentation (including registrations prescribed under the MSMED Act) as may be required by Buyer to determine their status as a micro or small [whichever is applicable] enterprise. However, if they acquire the status of Micro/Small enterprise, or otherwise become eligible for categorization as a 'supplier' within the meaning prescribed under the MSMED Act subsequently, they would inform to Buyer by writing forthwith along with such documentation as may be required by Buyer to determine their status as a Micro/Small Enterprise. The Seller further represents that they will promptly inform Buyer in writing in the event of any change in their status under the MSMED Act and in no event later than 30 days of change of such status. The Seller agrees that on and from the date of change in their status from a micro/small [select whichever is applicable], the provisions of MSMED Act shall cease to apply to them and the Buyer shall then be bound by the invoicing, payment and related provisions of Buyer as is applicable to establishments that are not a micro or small enterprise or a 'supplier' under the MSMED Act. The Seller shall indemnify Buyer against any claims, losses, damages, etc. that might arise out of or is attributable to any violation by the Seller of the covenants under this clause, including but not limited to: (a) The Seller failure to inform/furnish a correct declaration on time; (b) The Seller informing/furnishing any wrong declaration; & (c) The Seller's failure to comply with the provisions of the MSMED Act (if applicable); (d) any failure of the Seller to provide correct and updated invoices within the contractually agreed period which opens the Buyer to a claim for liability (monetary or otherwise) in case of delayed payments, or any case (e) any failure to submit such documentation as may be required by Buyer to determine their status.

11. Taxes

Unless specified otherwise on the face of the Order, the prices are inclusive of, and Seller shall be solely responsible for and pay, all state, and local taxes, including, but not limited to, goods and services tax.

Seller shall not charge TCS u/s 206C(1H) of Income Tax Act, 1961 if aggregated sale to Buyer exceeds INR 50 lakhs for sale of goods. In that case Buyer shall deduct Tax Deducted at Source (TDS) under Income Tax Act, 1961 and shall provide appropriate documents / credits to Seller to claim the same.

In case Seller is considered as specified person under section 206AB of Income Tax Act, then Buyer shall deduct TDS as per the provisions of Section 206AB of Income Tax Act 1961.

12. Compliance

Seller warrants and represents

(a) it shall comply with all the provisions and compliance requirements stipulated in Para 10 (a) and (b) above specifically with regard to GST Compliance and other compliances under applicable relevant taxation laws, including without limitation, timely registration (including any amendments/additions/deletions thereto), filing of all necessary information and returns/ forms, furnishing of all Payment Documents, payment of applicable taxes, etc. The Seller shall maintain its GST compliance rating score as and when notified by relevant taxation authority and that the Seller shall ensure that such rating does not fall below parameters/ benchmarks as prescribed by such relevant taxation authority, from time to time.

(b) it is in compliance with and shall remain in compliance during performance of this Order and ensure that its employees, agents, contractors and subcontractors (the "Personnel") comply with Buyer's Supplier Code of Conduct available on Buyer's website at <https://www.orixindia.com/pdf/OAIS-policy/corporate-governance/Suppliers%20Code%20of%20Conduct.pdf> and Buyer's Business Conduct Principles available on Buyer's website at <https://www.orixindia.com/pdf/OAIS-policy/corporate-governance/Business%20Conduct%20Principles.pdf>, and all applicable laws, regulations and ordinances. Seller has and shall maintain in effect all the licenses, permissions, authorizations, consents and permits required by law to carry out its obligations under the Order. The Seller shall comply with all export and import laws of all countries involved in the sale of Goods under this Order. Seller assumes all responsibility for shipments of Goods requiring any government import clearance. If Seller fails to comply with the laws, orders, rules, ordinances and regulations and as a result Buyer is fined, Seller agrees to pay the fine and costs incident thereto or reimburse Buyer for payment.

13. Indemnification

Seller shall defend, indemnify, and hold harmless Buyer and Buyer's parent company, its subsidiaries, affiliates, successors or assigns and its respective directors, officers, shareholders, and employees (collectively, "Indemnitees") against any and all loss, injury, death, damage, liability, claim, action, judgment, interest, penalty, cost or expense, including reasonable attorney and professional fees and costs, and the cost of enforcing any right to indemnification hereunder (collectively, "Losses") arising out of or occurring in connection with Seller's performance of its obligations or Seller's negligence, willful misconduct or breach of the Terms of this Order or Order placed by its subsidiary or holding Company or possession of the Goods infringes or misappropriates the patent, copyright, trade secret or other intellectual property right of any third party. Seller shall not enter into any settlement without Buyer's or Indemnitees' prior written consent.

14. Title and Risk of Loss

Unless otherwise specified in the Order, risk of loss of the Goods remains with Seller and title will not pass to Buyer until the Goods are delivered to and accepted by Buyer at the Delivery Location.

15. Force Majeure

Neither party shall be liable to the other for any delay or failure in performing its obligations under the Order to the extent that such delay or failure is caused by an event or circumstance that is beyond the reasonable control of that party, without such party's fault or negligence, and which by its nature could not have been foreseen by such party ("Force Majeure Event"). Force Majeure Events include, but are not limited to, acts of God or the public enemy, government restrictions, floods, fire, earthquakes, explosion, pandemic, epidemic, war, invasion, terrorist acts, riots, strike, or embargoes. Seller's economic hardship or changes in market conditions are not considered Force Majeure Events. Seller shall use all diligent efforts to end the failure or delay of its performance, ensure that the effects of any Force Majeure Event are minimized and resume performance under the Order. If a Force Majeure Event prevents Seller from performance for a continuous period of more than fifteen (15) business days, Buyer may terminate this Order immediately by giving written notice to Seller.

16. Relationship of the Parties

The Seller is an independent contractor of Buyer. Nothing contained herein shall be construed as creating any agency, partnership, employment or fiduciary relationship. Neither party shall have authority to bind the other party in any manner whatsoever.

17. Governing Law and Venue

All matters arising out of or relating to this Order shall be governed by and construed in accordance with the internal laws of the state or territory identified in the address for the Buyer on the Order, excluding its choice or conflict of law rules. Each party irrevocably and unconditionally submits to the exclusive jurisdiction of the state or territorial courts in the state or territory identified in the address for the Buyer on the Order and the courts of appeal from them.

18. Notices

All notices, consents, claims, demands, waivers and communications hereunder (each, a "Notice") shall be in writing and addressed to the parties at the addresses set forth on the face of this Order or to such other address that may be designated by the receiving party in writing. All Notices shall be delivered by personal delivery, nationally recognized overnight courier (all fees pre-paid), or certified or registered post (return receipt requested, postage prepaid) or through email. A Notice is effective only upon receipt of the receiving party.

19. Inconsistent Terms

The terms found on the face of this Order shall govern over the terms and conditions herein. Any separate written overriding agreement signed by both parties shall govern over the terms of the Order.

20. Survival

Provisions of this Order which by their nature should apply beyond any termination of this Order will remain in effect for the period expressed within the Clause but not longer than a period of two (2) years.

21. Severability

If any term or provision of this Order is found invalid, illegal or unenforceable in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other term of this Order or invalidate or render unenforceable such term in any other jurisdiction.

22. Miscellaneous

Seller shall not assign, transfer, delegate or subcontract any of its rights or obligations under the Order without Buyer's prior written consent. Any purported assignment or delegation in violation of this Clause shall be null and void. No assignment shall relieve the Seller of any of its obligations hereunder. No modification, alteration or amendment of the Order shall be binding unless agreed to in writing and signed by Buyer. No waiver by any party of any of the provisions of the Order shall be effective unless explicitly set forth in writing and signed by the party so waiving. No failure to exercise, or delay in exercising, any rights, remedy, power or privilege arising from the Order by Buyer shall operate or be construed as a waiver thereof, nor shall any single or partial exercise of any right, remedy, or privilege hereunder preclude any other exercise of any additional right, remedy, or privilege.